European Commission

Clean, Just and Competitive Transition

Issue 1 | February 2026

ISBN 978-92-68-37427-6, ISSN: 2363-2534

Competition Merger Brief

Brasserie Nationale / Boissons Heintz – Too much foam? Brussels reviews a deal already bottled

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Introduction

On 17 July 2025, the European Commission conditionally approved the acquisition of Boissons Heintz S.à r.l. ('Boissons Heintz', Luxembourg) by Munhowen S.A. ('Munhowen', Luxembourg), a wholly owned subsidiary of Brasserie Nationale S.A. ('Brasserie Nationale', Luxembourg). Munhowen, Boissons Heintz and Brasserie Nationale are together referred to as the 'Parties', and the acquisition as the 'Transaction'.

Boissons Heintz and Munhowen are the two largest wholesalers of beverages to on-trade customers (i.e. hotels, cafés and restaurants) in Luxembourg. Brasserie Nationale is also active upstream in the production and supply of beer (notably Bofferding, Battin and Funck-Bricher) and mineral water (Lodyss). In the beer segment in particular, Brasserie Nationale is one of the two main breweries in Luxembourg, alongside Brasserie de Luxembourg (Diekirch), which is part of the AB InBev group. Prior to the Transaction, Boissons Heintz was the principal wholesaler of AB InBev's beer products (including Diekirch).

The Transaction was referred on 14 March 2024 to the Commission for merger control review following a request from the Luxembourg competition authority pursuant to Article 22 of the EU Merger Regulation ('EUMR'). Since The transaction had been closed before the Luxembourg competition authority requested the referral, this case is one of the first instances of an ex-post review by the Commission under the EUMR.

Article 22 referral

Nowadays, most EU Member States have national merger control regimes to assess domestic transactions, except for Luxembourg. [1] In the absence of such regime, if the Great Duchy wants a deal to be assessed from a merger control perspective, it can rely on Article 22 EUMR, which allows Member States to request the European Commission to review transactions lacking a Union dimension but that (i) affect trade between Member States, and (ii) threaten significant competition impact within the requesting Member State's territory.

When the European Commission accepts a referral under Article 22 of the EUMR, it acquires jurisdiction to review the transaction and the merging parties have to notify it to the Commission, thereby initiating a merger investigation.

In February 2024, the Luxembourg competition authority addressed a referral request to the Commission who accepted it after preliminarily assessing the transaction's compliance with Article 22 criteria. Subsequently, Brasserie Nationale filed an appeal for annulment of the Commission's decision in June 2024.

In its ruling of July 2025, the General Court confirmed that in the context of an Article 22 referral, the Commission has jurisdiction to review a merger even if it has been closed and/or implemented before the referral request. While the parties may continue to move forward

In a nutshell

Following a request by the Luxembourg competition authority pursuant to Article 22 of the EU Merger Regulation, the European Commission conducted an *ex-post* review of the acquisition of Boissons Heintz by Brasserie Nationale.

The transaction would have combined the two largest wholesalers of beverages to hotels, cafés and restaurants for the on-trade channel in Luxembourg, leading to potential price rises and reduced choice and quality. There was also a serious risk that the new entity would foreclose water producers competing with Brasserie Nationale's brand (Lodyss).

The Transaction was cleared in Phase I, subject to the divestiture of Boissons Heintz's on-trade activities. This divestment business has been acquired by a Belgian wholesaler, Brasserie Maziers, that the Commission approved. This remedy enables Brasserie Maziers to enter into Luxembourg and contributes to the further integration of the internal market.

[1] However, in August 2023, Bill of Law No. 8296 on the control of concentrations between undertakings was submitted to Parliament. The legislative process is still ongoing.

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KD-01-26-001-EN-N, doi 10.2763/9063620
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with the deal while the Commission is still investigating, they face the risk that the Commission may ultimately prohibit the transaction.

The General Court also clarified that if the parties involved in a transaction are not required by domestic law to formally inform national authorities about their deal, as is the case in Luxembourg, the competent authorities have a period of 15 working days from the day the transaction is 'made known' to them, to request a referral to the Commission. The Court emphasised that for a transaction to be considered 'made known' the competent authorities must actively receive relevant and sufficient information which enables them to assess whether the transaction meets the criteria for referral under Article 22 EUMR. Simply informing the authorities of the existence of a transaction is not enough to meet these requirements. The parties involved are now contesting this decision before the European Court of Justice.

Serious doubts concerning the horizontal overlap for the distribution of beverages to on-trade customers

The Commission concluded that the Transaction raised serious doubts as to its compatibility with the internal market because it would have combined the two largest beverage wholesalers serving on-trade customers in Luxembourg.[2]

Despite the absence of reliable third-party data, the Commission was able, during its investigation, to reconstruct the relevant market and recalculate the Parties' market shares. On this basis, the new entity would have held a market share of 70–80% in the wholesale distribution of beverages to on-trade customers, with an increment of 20–30% attributable to Boissons Heintz. Likewise, for the distribution of beer specifically, the Parties' combined market share was very high (60–70%) with a material increment (10–20%). These estimates were consistent with the qualitative feedback received from customers and competitors during the market investigation.

Finally, the market investigation also showed that competing wholesalers lacked sufficient capacity in terms of warehouses, storage surface, trucks, drivers, employees, etc. It also showed that entry was unlikely due to the existence of high barriers in the form of administrative barriers, high real estate costs, and the prevalence of exclusivity arrangements in the distribution of beer to on-trade customers. In this context, the Commission concluded that the Transaction would confer a significant degree of market power to the new entity which could lead to price rises and/or a reduction of choice or quality on the market for the wholesale distribution of beverages to hotels, cafés and restaurants in Luxembourg.

[2] The Parties' activities overlapped also for the wholesale distribution of beverages to supermarkets and to office customers (i.e. catering companies, etc.).

Vertical issues

Given the very high market share of the Parties in the wholesale distribution of beverages to hotels, cafés and restaurants in Luxembourg, the Commission also assessed the risk that the new entity could foreclose upstream competitors of Brasserie Nationale, for the production of beer, but also mineral water.

Serious doubts for the distribution of mineral water

The Commission examined whether mineral water producers could be denied effective access to hotels, cafés and restaurants if they were to lose access to Boissons Heintz, in the absence of any credible alternative distributor for reaching those customers in Luxembourg (i.e. customer foreclosure).

In view of the Parties' high combined downstream market share (70–80%), the lack of credible alternatives, and the existence of significant barriers to entry in the distribution of beverages to on-trade customers in Luxembourg, the new entity would have been able to restrict competitors' access to the on-trade channel.

The new entity would also have had an incentive to engage in such conduct, as Brasserie Nationale's margins in the upstream supply of mineral water were higher than its margins in the downstream distribution of beverages to on-trade customers. Such a strategy would promote Brasserie Nationale's new mineral water brand (Lodyss) and would be consistent with its past behaviour.

Finally, this strategy would have had a significant impact on the market, given the large market share of the competing water producers that could be foreclosed.

No vertical issue for the distribution of beer

By contrast, the Commission was able to rule out competition concerns in relation to the production (upstream) and wholesale distribution (downstream) of beer to on-trade customers.

First, the majority of Boissons Heintz's on-trade customers were subject to exclusivity arrangements with AB InBev (Diekirch), under which they sold only Diekirch beer.[3] As a result, were the new entity to cease distributing that brand, those customers would be required to switch to an alternative wholesaler. This significantly limited the new entity's ability to foreclose AB InBev (Diekirch) and, conversely, created a strong incentive for it to continue distributing Diekirch to those customers. This assessment was corroborated by the evolution of the Parties' sales volumes observed during the Commission's ex post review.

Second, the Commission noted that independent customers (i.e. not bound by any exclusivity arrangement) represent a marginal share of the market, which makes smaller wholesalers more

[3] These exclusivities are often granted by on-trade customers in exchange for a liquor licence, premises and/or equipment.

credible competitive alternatives for these customers. Importantly, Boissons Heintz's market share on this hypothetical segment was limited, and the Transaction therefore did not eliminate a significant competitive constraint for these customers.

Remedies

To address the Commission's concerns, the Parties offered to divest a significant portion of Boissons Heintz's on-trade business. This included, amongst others, all customers who exclusively dealt with AB InBev (Dierkirch) and had stopped buying AB Inbev's draft beers from Boissons Heintz in 2023 and 2024. The package also included 30 employees, the 15,500m^2 warehouse (at the option of the buyer), and other assets such as trucks and intangible items including the brand name and order platform.

Following the Commission's approval, this business was sold to Groupe Maziers, an independent Belgian wholesaler specialised in the distribution of beverages, including beer, to on-trade customers in Belgium and nearby French regions. This resolution effectively alleviated the Commission's competitive concerns, particularly regarding the market concentration for beverage wholesale to on-trade customers in Luxembourg, whilst enabling a wholesaler already active in a neighbouring market to enter and effectively compete in Luxembourg, also deepening the integration of the internal market.